

STATEMENT OF THE ACCUSED UNDER SECTION 351, BNSS, 2023
C.C. NO. 1847/SS/2026

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Matter: Ritesh Ahluwalia v. Devraj Malkani
Recorded on: 10.03.2026

Q1. It is in evidence against you that you had taken a friendly loan of Rs. 36,00,000 from the Complainant on 10.08.2024. What do you have to say?

A. I admit having received the said amount from the Complainant.

Q2. It is further in evidence that you paid Rs. 1,08,000 to the Complainant on 10.11.2024 towards interest. What do you have to say?

A. I admit having made this payment, though I state it was not necessarily referable to any admitted rate of interest.

Q3. It is in evidence against you that you issued Cheque No. 004821 dated 05.09.2025 for Rs. 36,00,000, which was dishonoured. What do you have to say?

A. I admit issuing the cheque but state that it was issued as security and not for discharge of any existing, enforceable debt.

Q4. It is in evidence that the cheque was returned unpaid with the remark 'Funds Insufficient'. What do you have to say?

A. I have no personal knowledge of the state of my bank account on the date of presentation and do not dispute the bank's remark.

Q5. It is in evidence that a statutory notice dated 22.09.2025 was issued to you calling upon you to pay the cheque amount, and that you neither replied nor made payment. What do you have to say?

A. I received the notice but did not reply as I was of the view that no enforceable debt existed.

Q6. It has come in the cross-examination of the Complainant that his ledger records interest at 18% per annum though the loan agreement records 15% per annum. Do you wish to say anything about this?

A. Yes, this discrepancy shows that the Complainant's records are unreliable and supports my case that the cheque was not issued for an ascertained, enforceable debt.

Q7. Do you have any explanation for the discrepancy between the amount in figures (Rs. 36,00,000) and in words (Rupees Thirty Six Lakhs Fifty Thousand) on the cheque?

A. No, I have no explanation to offer; the cheque was signed and handed over by me in blank as security, to be filled in later.

Q8. Is it correct that you never revoked or countermanded the cheque or informed your bank to stop payment prior to its presentation?

A. That is correct, I took no such step.

Q9. Do you wish to lead evidence in defence?

A. Yes, I shall file my affidavit in defence and rely on the discrepancies in the Complainant's documents.

Q10. Is there anything else you wish to say?

A. I reiterate that the cheque was given only as security for a proposed transaction that did not materialise and deny any legally enforceable debt.
